

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #01	CCRB Case #: 201504991	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 06/10/2015 10:00 AM	Location of Incident: 786 East 161st Street; 40th Precinct stationhouse.	18 Mo. SOL 12/10/2016	Precinct: 40		
Date/Time CV Reported Wed, 06/17/2015 1:07 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/18/2015 1:07 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Fabio Checo	08177	932454	040 PCT
3. SGT Stephen Monroe	02330	904604	040 PCT
4. POM Moises Garcia	05782	950471	040 PCT
5. POM Thomas Warkenthien	02049	949785	040 PCT
6. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jonathan Blatt	2748	946787	040 PCT
2. POM Donald Sehl	02712	951232	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Fabio Checo	Abuse: At 786 East 161st Street in the Bronx, PO Fabio Checo stopped § 87(2)(b)	A . Exonerated
B . POM Fabio Checo	Abuse: At 786 East 161st Street in the Bronx, PO Fabio Checo threatened § 87(2)(b) with the use of force.	B . Unsubstantiated
C . POM Fabio Checo	Force: At 786 East 161st Street in the Bronx, PO Fabio Checo pointed his gun at § 87(2)(b)	C . Unsubstantiated
D . POM Fabio Checo	Force: At 786 East 161st Street in the Bronx, PO Fabio Checo used physical force against § 87(2)(b)	D . Exonerated
E . POM Moises Garcia	Force: At 786 East 161st Street in the Bronx, PO Moises Garcia used physical force against § 87(2)(b)	E . Exonerated
F . POM Thomas Warkenthien	Force: At 786 East 161st Street in the Bronx, PO Thomas Warkenthien used physical force against § 87(2)(b)	F . Exonerated
G . POM Fabio Checo	Force: At 786 East 161st Street in the Bronx, PO Fabio Checo used physical force against § 87(2)(b)	G . Unfounded
H . POM Moises Garcia	Force: At 786 East 161st Street in the Bronx, PO Moises Garcia used physical force against § 87(2)(b)	H . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
I . An officer	Force: At 786 East 161st Street in the Bronx, an officer struck § 87(2)(b) with a blunt instrument.	I . Unfounded
J . SGT Stephen Monroe	Abuse: At the 40th Precinct stationhouse, Sgt. Stephen Monroe authorized the strip-search of § 87(2)(b)	J . Substantiated
K . SGT Stephen Monroe	Abuse: At the 40th Precinct stationhouse, Sgt. Stephen Monroe did not obtain medical treatment for § 87(2)(b)	K . Substantiated
L . POM Fabio Checo	Abuse: At the 40th Precinct stationhouse, PO Fabio Checo refused to provide his name and shield number to § 87(2)(b)	L . Unsubstantiated
M . SGT Stephen Monroe	Abuse: At the 40th Precinct stationhouse, Sgt. Stephen Monroe refused to provide his name and shield number to § 87(2)(b)	M . Unsubstantiated
N . Officers	Abuse: At the 40th Precinct stationhouse, officers refused to provide their names and shield numbers to § 87(2)(b)	N . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)		

Case Summary

On June 10, 2015, at approximately 10:00 a.m., PO Fabio Checo, PO Moises Garcia, and PO Thomas Warkenthien, of the 40th Precinct Anti-Crime Team, responded to a radio run reporting a man with a gun in the vicinity of East 156th Street and Trinity Avenue in the Bronx. The man was described as a black male, wearing a black shirt and black shorts with writing on them. As he was driving his unmarked burgundy Ford Taurus, PO Checo and his partners observed § 87(2)(b) who was wearing a black shirt and black shorts with white writing on them, walking in the vicinity of East 161st Street and Trinity Avenue. PO Checo followed and observed § 87(2)(b) for approximately five minutes. During that time, PO Checo received confirmation of the description of the man with the gun from Sgt. Stephen Monroe, who was in another Anti-Crime RMP and had met with the reporting witness.

According to § 87(2)(b) PO Checo shouted for him to stop but did not identify himself as a police officer. § 87(2)(b) looked toward PO Checo, at which time he observed additional officers running toward him. § 87(2)(b) fled the scene on foot. PO Checo chased § 87(2)(b) in his car while PO Garcia and PO Warkenthien pursued him on foot (**allegation A**). PO Checo yelled from his car and allegedly threatened to shoot § 87(2)(b) during the chase (**allegation B**).

PO Checo stopped and exited his RMP when § 87(2)(b) ran out of breath. PO Checo allegedly pointed his gun at § 87(2)(b) and threatened to shoot him (**allegations B and C**). PO Garcia and PO Warkenthien caught up, and the officers allegedly pushed § 87(2)(b) to the ground (**allegations D, E, and F**). As § 87(2)(b) was on the ground, PO Checo allegedly punched him in his lower back 10 to 15 times (**allegation G**). PO Garcia and PO Warkenthien handcuffed § 87(2)(b). As he was being handcuffed, PO Garcia allegedly placed his knee on the back of § 87(2)(b)'s head, turning his face to the side and causing him to suffer abrasions to his face (**allegation H**). § 87(2)(b) felt pressure on his right leg and believed that one of the officers may have struck it with an object such as a gun. § 87(2)(b) did not describe any sensations felt aside from the pressure; he did not see any batons on the officers (**allegation I**).

A friend of § 87(2)(b) § 87(2)(b) stated that she was walking home from a store when she witnessed portions of the chase and apprehension of § 87(2)(b) in the vicinity of Hewitt Place and Longwood Avenue. She did not become involved in the arrest as she remained three to four car lengths away from § 87(2)(b) and the officers as she observed.

When Sgt. Monroe and PO Donald Sehl arrived, PO Checo informed Sgt. Monroe that § 87(2)(b) had thrown a bag of crack-cocaine during the chase. Sgt. Monroe authorized a strip search of § 87(2)(b) which was to be performed at the 40th Precinct stationhouse (**allegation J**). After being searched in the bathroom by PO Checo, § 87(2)(b) was taken to the cell area, where he asked Sgt. Monroe to call EMS for him. Several hours passed without the arrival of an ambulance (**Allegation K**). As § 87(2)(b) waited, he asked every officer he saw for his or her shield number, including PO Checo and Sgt. Monroe, who refused to provide their information (**Allegations L, M, and N**).

An officer later allowed § 87(2)(b) to use the phone. He called his mother, § 87(2)(b) and informed her of the details of his arrest. § 87(2)(b) called EMS for § 87(2)(b). When EMS arrived, Sgt. Monroe allegedly told the EMTs that they could not take § 87(2)(b) and he

attempted to coerce § 87(2)(b) to sign an RMA (also Allegation L). § 87(2)(b) was eventually transported via ambulance to § 87(2)(b), § 87(2)(b)

As per § 87(2)(b)'s arrest report, he was charged with § 87(2)(a) 160.50

Video cameras for the supermarket at 724 East 161st Street were not functional. The building manager for 814 Hewitt Place, where § 87(2)(b) described the officers caught up to him, was reached via phone and video footage was requested. He did not respond to follow up calls from the investigator, and video footage was not obtained from the location.

§ 87(2)(g), § 87(2)(b)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

This case was ineligible for mediation due to § 87(2)(b)'s arrest.

A Notice of Claim inquiry was submitted to the Office of the New York City Comptroller on October 26, 2015. As of October 30, 2015, there were no records to indicate a Notice of Claim had been filed by or on behalf of § 87(2)(b) [see 01 Board Review].

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

This is the first CCRB complaint filed by or on behalf of § 87(2)(b) [03 Board Review].

This is the first CCRB complaint filed against PO Checo during his 12 year tenure.

This is the second CCRB complaint filed against PO Garcia during his four year tenure with no allegations substantiated against him. The previous complaint features an allegation of physical force but was closed as complainant unavailable. § 87(2)(g)

This is the third CCRB complaint filed against PO Warkenthien during his five year tenure. There are no substantiated allegations against him. An allegation of physical force was pled in case 201112929. The case was closed as complainant uncooperative, but it was alleged that PO Warkenthien took an individual to the ground.

This is the third CCRB complaint filed against Sgt. Monroe during his 22 year tenure. There have been no allegations substantiated against him. He has not previously been the subject of the allegations pled against him in this case.

Potential Issues

§ 87(2)(b) testified that another prisoner, who he knew only as § 87(2)(b) ” witnessed Sgt. Monroe refuse to obtain medical treatment for § 87(2)(b) “§ 87(2)(b) ” was identified by the investigation as § 87(2)(b) The investigation was unable to reach § 87(2)(b) for testimony [see 28 Board Review, IAs].

Findings and Recommendations

Allegation A – Abuse of Authority: At 786 East 161st Street in the Bronx, PO Fabio Checo stopped § 87(2)(b)

Allegation B – Abuse of Authority: At 786 East 161st Street in the Bronx, PO Fabio Checo threatened § 87(2)(b) with the use of force.

Allegation C – Abuse of Authority: At 786 East 161st Street in the Bronx, PO Fabio Checo pointed his gun at § 87(2)(b)

It is undisputed that a 911 call reporting a man with a gun in his hand was placed on June 10, 2015, at 9:44 a.m. According to the Event Information, the incident was reported anonymously, though there was a phone number. The suspect was described as a black male who was wearing a black shirt and black shorts with “Malcolm-X” written on them. That male was reportedly jogging on East 156th Street toward St. Anns Avenue. The gun was not described [see 04 Board Review].

On June 29, 2015, the investigator phoned the callback number listed on the Event Information for the 911 call reporting the man with the gun. § 87(2)(b) answered and confirmed that he had made the report. § 87(2)(b) confirmed that the description featured on the Event Information was correct. He also stated that he was called by officers 30 minutes after he reported the incident and asked to go to the 40th Precinct stationhouse. Once there, he went on a ride-along with three officers in an unmarked burgundy Ford Taurus. The officers said that the suspect was apprehended in the vicinity of East 161st Street. They showed § 87(2)(b) a photo of a pair of shorts, which he believed to be a match for what he described in the 911 call. § 87(2)(b) stated that the officers canvassed the route that the suspect used to flee on foot but did not recover a firearm. § 87(2)(b) made no mention of meeting with the officers prior to the suspect’s arrest [see 05 Board Review].

§ 87(2)(b) who was a § 87(2)(b) black male, testified that he was walking home from his girlfriend’s house at the time of the incident. He was wearing a black shirt and black shorts with the word “Bazz” written on them. § 87(2)(b) was carrying a cell phone, keys, tissues, and his wallet in the pockets of his shorts. He was also holding an Android smartphone in his hand while listening to music. According to § 87(2)(b) an unmarked burgundy RMP pulled up along his side as he was in the vicinity of Hewitt Place and Longwood Avenue, which was determined to be approximately 10 blocks from the location reported in the 911 call. PO Checo, who was in plainclothes and not wearing a shield, shouted for him to stop. PO Checo allegedly failed to identify himself as a police officer. When § 87(2)(b) turned, he observed, PO Garcia and PO Warkenthien running toward him. § 87(2)(b) ran because he feared for his safety. § 87(2)(b) denied knowing that the officers were members of the service. He stated that there had been a

shooting in the area the day before, and that he feared that the officers were people who wished to hurt him.

§ 87(2)(b) ran for six to seven blocks, chased on foot by PO Garcia and PO Warkenthien. § 87(2)(b) denied throwing anything as he ran, but he acknowledged that he may have put his phone in his pocket. PO Checo followed § 87(2)(b) in his car. PO Checo allegedly yelled from his car and told § 87(2)(b) that he was going to shoot him. § 87(2)(b) did not know if PO Checo had his gun drawn at that time.

As § 87(2)(b) tired, the chase drew to a close. PO Checo stopped, exited his RMP, and allegedly pointed his gun at § 87(2)(b). § 87(2)(b) weaved between parked cars as he ran down the block to avoid being shot. PO Checo allegedly instructed § 87(2)(b) “Stop running or I’m going to shoot you right now.” PO Checo did not tell § 87(2)(b) to show his hands or to get on the ground, and he had not yet identified himself as a police officer [see 06 Board Review].

§ 87(2)(a) PHL § 18(6)

In a phone statement, § 87(2)(b) whose boyfriend was a friend of § 87(2)(b)’s made no mention of an officer pointing a gun at § 87(2)(b) or threatening to shoot him, though she may not have been present for that portion of the incident. She stated that she observed the end of the chase in the vicinity of Hewitt Place and Longwood Avenue. She remained three to four car lengths away from § 87(2)(b) and the officers as she observed [see 07 Board Review].

PO Checo testified that he had observed § 87(2)(b) who he described as a black male wearing a black shirt and black pants with white writing on them, minutes after receiving the radio run. He observed § 87(2)(b) for approximately five minutes as he drove slowly behind him. PO Checo believed that § 87(2)(b) fit the description provided by the radio run. As PO Checo was observing § 87(2)(b) the second car from his Anti-Crime Team, which contained Sgt. Monroe and PO Sehl, was meeting with § 87(2)(b). PO Checo phoned Sgt. Monroe and described § 87(2)(b). § 87(2)(b) confirmed that § 87(2)(b) was wearing black sweatpants at the time he had observed him with the firearm. After receiving confirmation of the description, PO Checo called to § 87(2)(b) “Police. I need to speak to you.” § 87(2)(b) did not approach PO Checo’s RMP or say anything. § 87(2)(b) immediately fled on foot. PO Checo did not see § 87(2)(b) discard any objects at that time. As he ran, § 87(2)(b) kept his right hand concealed in his waist-height pocket. PO Checo chased § 87(2)(b) in his car and instructed him to stop and show his hands. § 87(2)(b) did not comply. The chase continued for several blocks. PO Checo denied threatening to shoot § 87(2)(b) during the chase.

PO Checo also testified that § 87(2)(b) tired in the vicinity of Hewitt Place. PO Checo pulled his RMP ahead of § 87(2)(b) to prevent him from running past. PO Checo exited his RMP and instructed § 87(2)(b) to stop and show his hands. § 87(2)(b)’s right hand remained concealed as he zigzagged between parked cars to avoid PO Checo. PO Checo was nervous at this point because he believed that § 87(2)(b) was concealing a firearm based on his observations and the

report details. PO Checo denied drawing his weapon or pointing it at § 87(2)(b) and he did not threaten to shoot § 87(2)(b) [see 08 Board Review].

PO Garcia corroborated PO Checo's testimony concerning § 87(2)(b)'s appearance, aside from testifying that § 87(2)(b) was wearing black shorts rather than black pants. Both testified that § 87(2)(b)'s pants or shorts featured white writing. PO Garcia's testimony concerning § 87(2)(b)'s behavior and concealing of his hand was also consistent with PO Checo's. He did not hear PO Checo threaten to shoot § 87(2)(b) during the chase, though he fell a block behind PO Checo's car and § 87(2)(b) during the chase and was unable to hear what, if anything, PO Checo said to § 87(2)(b) from then on.

When PO Garcia caught up to PO Checo and § 87(2)(b) PO Checo was out of his RMP and chasing § 87(2)(b) as he ran between parked cars. PO Garcia did not see PO Checo draw his firearm. According to PO Garcia, PO Checo did not threaten to shoot § 87(2)(b) [see 09 Board Review].

PO Warkenthien's description of § 87(2)(b)'s behavior was consistent with the testimonies provided by PO Checo and PO Garcia. PO Warkenthien denied hearing PO Checo threaten to shoot § 87(2)(b) at any point. He did not see PO Checo with his gun drawn or pointed at § 87(2)(b) at any point [see 10 Board Review].

Sgt. Monroe and PO Sehl both testified that they arrived after § 87(2)(b) was in handcuffs. Although they testified that the route of the chase was broadcast via radio, they were not present to observe it. They would not have been present to hear the alleged threats made by PO Checo or see him point his gun at § 87(2)(b) [see 11-12 Board Review].

An anonymous 911 call regarding a specifically described individual with a gun at a specific location provides officers with founded suspicion to question an individual matching the description at that location but not the reasonable suspicion required to stop the individual. **People v. Moore**, 6 N.Y.3d 496 (2006). If officers have founded suspicion to question an individual, that individual's flight at the sight of officers provides officers with the reasonable suspicion to chase and stop that individual. **People v. Pittman**, 2013 N.Y. App. Div. LEXIS 425 (2013). A threat of force must serve a legitimate purpose other than to intimidate. **NYPD v. Briscoe**, OATH No. 1328/00. An officer may draw or point his firearm as long as he has a reasonable fear for his own safety or the safety of others. **NYPD v. Gilner**, OATH No. 955/00 [see 13-16 Board Review].

§ 87(2)(g)
[REDACTED]

§ 87(2)(g) It is therefore recommended that **allegation A** be closed as **exonerated**.

§ 87(2)(g)

It is therefore recommended that **allegations B and C** be closed as **unsubstantiated**.

Allegation D – Force: At 786 East 161st Street in the Bronx, PO Fabio Checo used physical force against § 87(2)(b)

Allegation E – Force: At 786 East 161st Street in the Bronx, PO Moises Garcia used physical force against § 87(2)(b)

Allegation F – Force: At 786 East 161st Street in the Bronx, PO Thomas Warkenthien used physical force against § 87(2)(b)

§ 87(2)(b) alleged that as he ran past PO Checo, he approached an intersection. PO Garcia and PO Warkenthien were approaching him from the opposite direction as PO Checo, trapping § 87(2)(b) between the officers. § 87(2)(b) had nearly run past PO Garcia and PO Warkenthien when PO Warkenthien grabbed his shoulder. Then, PO Garcia grabbed § 87(2)(b)'s right arm and pulled it behind his back before pushing him to the ground. § 87(2)(b)'s chest contacted the ground first [see 06 Board Review].

§ 87(2)(b) observed § 87(2)(b) running from the police in the vicinity of Hewitt Place and Longwood Avenue. From a distance of three to four car lengths, she observed four to five officers plainclothes huddled around § 87(2)(b) for 20 to 30 seconds. She denied seeing or hearing anything to suggest that a physical struggle had taken place, though she denied seeing what happened between § 87(2)(b) and the officers. § 87(2)(b) stated that she did not observe any injuries to § 87(2)(b) [see 07 Board Review].

§ 87(2)(b), § 87(2)(a) PHL § 18(6)

PO Checo testified that § 87(2)(b) was still attempting to flee when PO Garcia and PO Warkenthien arrived on foot. § 87(2)(b) appeared unaware that PO Garcia and PO Warkenthien were approaching. Once § 87(2)(b) was trapped between the officers, PO Checo grabbed § 87(2)(b) by his biceps. PO Garcia and PO Warkenthien approached § 87(2)(b) from behind and grabbed § 87(2)(b)'s shoulders. According to PO Checo, § 87(2)(b) continued to resist by shrugging his shoulders, twisting his body, and moving his feet. The officers used their collective strength to overpower § 87(2)(b) and pull him to the ground. He was not tackled. All three

officers fell to the ground with § 87(2)(b) PO Checo did not know how § 87(2)(b) landed [see 08 Board Review].

§ 87(2)(g)
PO Garcia stated that he arrived just after PO Warkenthien because he had stopped briefly to recover a bag thrown by § 87(2)(b) during the chase. According to PO Garcia, § 87(2)(b) was running up a hill and did not see PO Garcia running down the hill. As they were both still running, PO Garcia grabbed § 87(2)(b) by his arm, and their momentum carried both men to the ground. PO Garcia had not intended to take § 87(2)(b) to the ground for fear of injuring himself in the process. PO Garcia hugged § 87(2)(b) on the way down to prevent him from escaping, and § 87(2)(b) landed face up [see 09 Board Review].

PO Warkenthien's testimony regarding § 87(2)(b)'s evasive movements corroborated the testimonies of PO Checo and PO Garcia. He also stated that § 87(2)(b) weaved between parked cars. PO Warkenthien and PO Garcia reached § 87(2)(b) about 30 seconds after PO Checo exited his RMP. PO Garcia made physical contact with § 87(2)(b) first. He grabbed § 87(2)(b)'s torso by reaching over his shoulder. PO Warkenthien then grabbed one of § 87(2)(b)'s arms and assisted PO Garcia in bringing him to the ground. They were able to ease § 87(2)(b) to the ground because § 87(2)(b) was tired from running. The officers were also tired and fell to the ground with him due to the momentum and their own fatigue. § 87(2)(b) landed on his side [see 10 Board Review].

Sgt. Monroe and PO Sehl testified that they arrived after § 87(2)(b) was handcuffed. Both denied participating in his apprehension [see 11-12 Board Review].

Patrol Guide procedure 203-11 states that an officer must use the minimum force necessary to overcome resistance [see 17 Board Review].

§ 87(2)(g)
it is recommended that **allegations D, E, and F** be closed as **exonerated**.

PO Checo testified that § 87(2)(b) was turned onto his stomach after he was taken to the ground so that he could be handcuffed. § 87(2)(b) moved his arms around in an effort to resist being handcuffed. The officers instructed § 87(2)(b) to place his hands behind his back, but he did not respond. The officers used their collective strength to apply pressure to § 87(2)(b)'s arms and bring them behind his back. PO Checo denied punching § 87(2)(b) or seeing any officer do so [see 08 Board Review].

PO Garcia stated that he turned § 87(2)(b) who was squirming and trying to shake free, onto his stomach in order to handcuff him. Although PO Checo and PO Warkenthien were standing nearby, PO Garcia did not believe that either assisted in handcuffing § 87(2)(b). PO Garcia denied placing his knee on § 87(2)(b)'s head or seeing any officer do so. PO Garcia did not punch or strike § 87(2)(b) with an object anywhere on his body. PO Garcia did not see any officer do so. PO Garcia lifted § 87(2)(b) from the ground and did not observe any injuries to his person [see 09 Board Review].

PO Warkenthien also testified that § 87(2)(b) resisted arrest by kicking and flailing his arms. PO Garcia and PO Warkenthien overcame this resistance by pulling § 87(2)(b)'s arms behind his back. PO Warkenthien did not believe that any officer punched § 87(2)(b). PO Warkenthien did not strike § 87(2)(b) with any object or see any officer do so. PO Warkenthien did not see any officer place his knee on § 87(2)(b)'s head or take that action himself [see 10 Board Review].

Sgt. Monroe and PO Sehl both testified that the physical struggle had concluded by the time they arrived. Neither observed the force alleged by § 87(2)(b) [see 11-12 Board Review].

§ 87(2)(g)

It is therefore recommended that allegations **G and I** be closed as **unfounded**.

§ 87(2)(g)

It is therefore recommended that **allegation H** be closed as **unsubstantiated**.

Allegation J – Abuse of Authority: At the 40th Precinct stationhouse, Sgt. Stephen Monroe authorized the strip search of § 87(2)(b)

§ 87(2)(b) denied having any contraband on his person on the date of the incident. He did not remove anything from his pockets or discard any items as he ran from the officers. § 87(2)(b) was searched at the scene of his arrest. According to § 87(2)(b) no contraband was recovered, but the officers later lied and stated that § 87(2)(b) had crack-cocaine on him. § 87(2)(b) was transported to the 40th Precinct stationhouse by PO Checo and another officer whose identity he did not remember.

§ 87(2)(b) testified that he was not searched at the desk when he arrived at the stationhouse. PO Checo and another officer, whose identity § 87(2)(b) did not remember, were with § 87(2)(b) at that time. He did not see either officer speak with a supervisor. PO Checo and another officer took § 87(2)(b) to a bathroom and asked him why he ran. They also asked him if he had any contraband on his person. § 87(2)(b) denied having any contraband on his person and explained that he ran because he was scared. According to § 87(2)(b) the officers then instructed § 87(2)(b) to remove all of his clothing, squat, and lift his testicles. No contraband was recovered during the strip search [see 06 Board Review].

PO Checo testified that, after § 87(2)(b) was handcuffed, PO Garcia informed PO Checo that he had observed § 87(2)(b) remove a bag from his pocket and throw it when he first started running on East 161st Street. PO Garcia had recovered the bag from where § 87(2)(b) dropped it, and it contained approximately 20 smaller bags of crack-cocaine. PO Checo informed Sgt. Monroe of this discovery, and Sgt. Monroe authorized a strip search of § 87(2)(b) which was to be conducted at the stationhouse.

PO Checo acknowledged that he frisked § 87(2)(b) and searched his pockets at the scene of his arrest. No weapon or additional contraband was recovered. PO Checo stated that he believed that § 87(2)(b) was hiding additional contraband on his person due to the quantity of narcotics he had discarded during the chase. PO Checo did not have any specific belief as to where § 87(2)(b) may have been hiding additional contraband.

PO Checo stated that he drove § 87(2)(b) back to the 40th Precinct stationhouse. PO Garcia and PO Warkenthien accompanied them. PO Checo did not remember if § 87(2)(b) did anything inside the RMP during transport that made him believe that § 87(2)(b) was attempting to conceal contraband. Neither PO Garcia nor PO Warkenthien informed PO Checo that he believed that § 87(2)(b) was attempting to conceal contraband.

Once at the stationhouse, PO Checo provided § 87(2)(b)'s pedigree information to Sgt. Monroe, who typically made command log entries for the Anti-Crime Team. At that time, Sgt. Monroe again authorized the strip search of § 87(2)(b). PO Checo believed that Sgt. Monroe made the command log entry for § 87(2)(b)'s arrest, but he did not know if a strip search was noted.

PO Checo brought § 87(2)(b) to the bathroom to conduct a more extensive search, which he characterized as a strip search, to remove any additional contraband. PO Garcia was also present during the strip search. PO Checo described the search as the removal of § 87(2)(b)'s sneakers, socks, and pants' drawstring. PO Checo did not ask § 87(2)(b) to remove his pants, shirt, or

underwear. He denied instructing § 87(2)(b) to remove all of his clothing. PO Checo performed what he described as a pat-down of § 87(2)(b)'s genital region over his underwear. He denied instructing § 87(2)(b) to squat and lift his testicles. No additional contraband was recovered [see 08 Board Review].

As noted above, Sgt. Monroe arrived at the scene of § 87(2)(b)'s arrest after he was handcuffed. Sgt. Monroe acknowledged that § 87(2)(b) was searched there but denied remembering who conducted the search. At the scene, PO Checo informed Sgt. Monroe that a large quantity of crack-cocaine had been recovered from § 87(2)(b) though Sgt. Monroe did not remember if PO Checo specified where and when the drugs were recovered or if § 87(2)(b) attempted to discard them. Sgt. Monroe observed and described as a sandwich-style plastic bag containing over 20 vials of crack-cocaine.

Sgt. Monroe spoke with § 87(2)(b) and asked him about the gun he was reported to be in possession of. § 87(2)(b) denied being in possession of a gun. Sgt. Monroe did not remember if he asked § 87(2)(b) anything about drugs. Sgt. Monroe then instructed the officers to transport § 87(2)(b) to the stationhouse.

At the stationhouse, Sgt. Monroe spoke with § 87(2)(b). Then, Sgt. Monroe, PO Sehl, and § 87(2)(b) § 87(2)(b) drove from the stationhouse to the scene of the pursuit and arrest to conduct a canvass. The canvass took approximately 20 minutes. A weapon was not found. Sgt. Monroe did not remember if he returned to the stationhouse immediately.

Sgt. Monroe testified that he returned to the stationhouse and spoke with an officer who informed him that § 87(2)(b) had been strip searched. Sgt. Monroe did not remember which officer provided this information, if it was one of his Anti-Crime officers, or if that officer was male or female. Sgt. Monroe believed that the stated reason for the strip search was the quantity of drugs that § 87(2)(b) had on his person. The officer who informed Sgt. Monroe of the strip search did not reveal if § 87(2)(b) had been making movements indicative of hiding drugs. Sgt. Monroe did not remember if any officer requested authorization to strip search § 87(2)(b) prior to learning that the strip search had been conducted. Sgt. Monroe denied that he authorized a strip search of § 87(2)(b) or instructed any officer to strip search him. Sgt. Monroe denied learning who authorized the strip search or remembering who was the desk sergeant at that time. Sgt. Monroe stated that he did not know who conducted the strip search or where it was conducted because he was not present at that time [see 11 Board Review].

Sgt. Blatt was desk sergeant at the time § 87(2)(b) arrived at the 40th Precinct stationhouse. Sgt. Blatt did not remember authorizing any strip searches during his tour. He acknowledged that either he or the requesting officer's immediate supervisor would have been required to authorize a strip search before it was conducted. According to Sgt. Blatt, a notation of a strip search would appear in the arrestee's command log entry, most likely in the margin. Sgt. Blatt was shown § 87(2)(b)'s arrest entry in the command log, but he did not see anything there to suggest that a strip search had been conducted. Sgt. Blatt believed that Sgt. Monroe made § 87(2)(b)'s arrest entry in the command log [see 18 Board Review].

PO Garcia and PO Warkenthien both denied informing Sgt. Monroe of the details of § 87(2)(b)'s arrest or the recovery of the drugs. PO Warkenthien believed that Sgt. Monroe was informed of the drugs discarded by § 87(2)(b) though he did not remember who provided this information to Sgt. Monroe. PO Garcia denied having any knowledge of this. Neither officer testified to having observed any behavior exhibited by § 87(2)(b) indicative of hiding additional contraband. Both PO Garcia and PO Warkenthien denied requesting or hearing any officer request authorization for a strip search of § 87(2)(b) [see 09-10 Board Review].

PO Garcia testified that he brought § 87(2)(b) to the stationhouse bathroom, but they both waited outside of it for PO Checo. He did not state why he brought § 87(2)(b) to the bathroom. When PO Checo arrived, PO Garcia transferred custody of § 87(2)(b) to him and immediately went to the Anti-Crime office on the second floor. PO Garcia denied learning the details of what happened in the bathroom. PO Checo did not inform him that he had strip searched § 87(2)(b) [see 09 Board Review].

PO Warkenthien acknowledged that PO Checo brought § 87(2)(b) to the stationhouse bathroom but denied being present to witness what happened inside. He stated that he did not learn the details of any searches that may have been conducted inside the bathroom [see 10 Board Review].

§ 87(2)(a) 160.50

There was no notation of a strip search in PO Checo's memo book, the arrest report he prepared, or the Command Log [see 19-21 Board Review].

An NYPD Finest Message dated May 13, 2004, defines a strip search as any search in which an individual's undergarments and/or private areas are exposed or in which an individual's clothing is removed, lifted, pulled up or pulled down to expose undergarments or private areas [see 33 Board Review]. According to **People v. Hall** 10 NY3d 303 (2008), in order to strip search an individual, an officer must have an "articulable factual basis supporting a reasonable suspicion, beyond probable cause to arrest, to believe that the arrestee secreted contraband, evidence, or a weapon." **Patrol Guide procedure 208-05** also states that a strip search may only be conducted if the arresting officer reasonably suspects that weapons, contraband, or other evidence may be concealed upon the person or clothing in such a manner that they would not have been discovered by previous search methods. The immediate supervisor of the arresting officer, based on facts presented, will determine if a strip search should be conducted and is responsible for ensuring that the strip search is conducted properly [see 22-23 Board Review].

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegation J** be closed as **substantiated**.

Allegation K – Abuse of Authority: At the 40th Precinct stationhouse, Sgt. Stephen Monroe did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) testified that Sgt. Monroe approached him when he was in the cell and offered to make a deal with him. Sgt. Monroe allegedly said that all § 87(2)(b) had to do was go home. Another prisoner in the cell, who § 87(2)(b) knew only as “§ 87(2)(b)” told § 87(2)(b) that the officers only wanted to let him go because § 87(2)(b) had a case against him, referencing the force mentioned above, which § 87(2)(b) had described to him earlier. After dispensing legal advice, § 87(2)(b) told § 87(2)(b) to have the officers call EMS for him. Sgt. Monroe appeared upset and then walked out of the room. Then, § 87(2)(b) informed unnamed officers that he wanted medical attention. He believed that these officers informed a supervisor because they walked away after his request.

According to § 87(2)(b) EMS did not arrive for several hours. During that time, at least four officers had said that EMS was on the way. When an officer allowed § 87(2)(b) to use the phone, § 87(2)(b) called his mother, § 87(2)(b) who later called EMS for him.

There were two jobs generated for this incident. The first, § 87(2)(b) was for the initial report of a man with a gun, and the subsequent pursuit of § 87(2)(b). The second, § 87(2)(b) stemmed from the 911 call made by § 87(2)(b)'s mother at 3:04 p.m. The Event Summary revealed that there was no documentation of any call for an ambulance placed from the 40th Precinct between the hours of § 87(2)(b)'s arrest at 10:00 a.m. and his mother's 911 call at 3:04 p.m. [see 04 Board Review].

§ 87(2)(b) testified that Sgt. Monroe asked the EMTs what they were doing at the stationhouse once they arrived. An EMT informed Sgt. Monroe that § 87(2)(b)'s mother had called for EMS

on his behalf. Sgt. Monroe allegedly told the EMTs that they could not take § 87(2)(b) until after he was transported to Central Booking. Sgt. Monroe also told § 87(2)(b) that he had to sign an RMA on the EMT's tablet. § 87(2)(b) refused to do so and told Sgt. Monroe that he wanted to go to the hospital to have his leg examined. Sgt. Monroe instructed officers to bring § 87(2)(b) to Central Booking. When one of them protested, Sgt. Monroe allegedly asked the officer if he wanted to lose his job. § 87(2)(b) asked an EMT for his shield number and informed the EMT that he wanted to use him as a witness. After the EMT provided his shield number, which § 87(2)(b) provided to the investigation as "1815," Sgt. Monroe told the EMTs to transport § 87(2)(b) to the hospital [see 06 Board Review].

The Command Log had no notation of any injuries to § 87(2)(b) or if he made a request for medical attention, though Sgt. Blatt confirmed that the entry was in Sgt. Monroe's handwriting [see 18, 21 Board Review].

§ 87(2)(a) PHL § 18(6)

In a phone statement, § 87(2)(b) revealed that she called 911 after speaking to § 87(2)(b) on the phone. He had informed her that officers had assaulted him and then refused to obtain medical attention for him [see 27 Board Review].

EMT § 87(2)(b) testified that § 87(2)(b) complained of pain to his face, a headache, and nausea. He also claimed that he had been assaulted by officers during his arrest. EMT § 87(2)(b) wanted to take § 87(2)(b) to the hospital because he was unsure if § 87(2)(b) had any internal injuries. As required, the EMTs waited for § 87(2)(b)'s arresting officer to escort. According to EMT § 87(2)(b) the arresting officer seemed upset that § 87(2)(b) wanted to go to the hospital. EMT § 87(2)(b) did not remember what the arresting officer looked like. The arresting officer called for the assistance of a sergeant, who EMT § 87(2)(b) described as a black male, in his late 30s or 40s, stood taller than 5'7" tall, and had a slim build.

According to EMT § 87(2)(b) the sergeant told § 87(2)(b) that going to the hospital would delay the processing of his arrest and reminded him that it would not get him out of going to Central Booking. EMT § 87(2)(b) did not remember if the sergeant told § 87(2)(b) that he could not go to the hospital until after he was processed at Central Booking. § 87(2)(b) initially declined to go to the hospital, and he signed an RMA. EMT § 87(2)(b) did not remember exactly when § 87(2)(b) signed the RMA, but he believed that it was before or during his conversation with the sergeant. EMT § 87(2)(b) did not remember if § 87(2)(b) signed the RMA of his own free will or if he was coerced by any officer. He did not specifically remember any officer refusing to obtain medical treatment for § 87(2)(b). The conversation between § 87(2)(b) and the officers lasted 15 to 20 minutes. EMT § 87(2)(b) partner, EMT § 87(2)(b) was in and out of the area at the time because he had to call his supervisor [see 24 Board Review].

EMT § 87(2)(b) had no independent recollection of the events of this incident [see 25 Board Review].

PO Checo testified that § 87(2)(b) complained of a leg cramp one to two hours after arriving at the 40th Precinct stationhouse. PO Checo acknowledged that he observed what appeared to be a muscle spasm in § 87(2)(b)'s leg, and that § 87(2)(b) requested to go to the hospital. PO Checo stated that he reported the injury to Sgt. Monroe, and he believed that Sgt. Monroe called for an ambulance. PO Checo did not learn that § 87(2)(b)'s mother made a 911 call on his behalf. He denied seeing Sgt. Monroe converse with § 87(2)(b) or hearing Sgt. Monroe tell anyone that § 87(2)(b) could not receive medical attention because he had to be transported to Central Booking. He did not hear any officer make such a statement. PO Checo did not remember if he was present when EMS arrived; he did not remember speaking with EMTs or seeing them arrive. PO Checo did not hear any officer refuse medical attention for § 87(2)(b) nor did he hear § 87(2)(b) decline treatment. PO Checo denied observing any officer coerce § 87(2)(b) to sign an RMA or hearing any officer tell another officer that he would lose his job if he allowed § 87(2)(b) to obtain medical treatment. PO Checo stated that he did not escort § 87(2)(b) and was not present when § 87(2)(b) was transported to the hospital because he was required to remain at the stationhouse to speak with the District Attorney's office [see 08 Board Review].

Sgt. Monroe acknowledged that § 87(2)(b) requested medical attention when he spoke with him in the cell area, though § 87(2)(b) did not provide a reason for the request. Sgt. Monroe testified that he did not observe any injuries to § 87(2)(b) at that time, and he had not observed any at the scene of his arrest. According to Sgt. Monroe, § 87(2)(b) did not appear to have trouble walking in the stationhouse, and he did not state that he could not walk. Sgt. Monroe testified that he called for an ambulance, but he did not remember how long it took him to do so. His memo book had no entries concerning a request for EMS for § 87(2)(b) and the command log had no notation of anything regarding EMS for § 87(2)(b) until 4:20 p.m. Sgt. Monroe was unable to estimate if it was minutes or hours after § 87(2)(b) made the request. Sgt. Monroe stated that he was present when EMS arrived, but he did not remember how long that was after § 87(2)(b) requested medical attention.

According to Sgt. Monroe, the EMTs spoke with § 87(2)(b) and then transported him to the hospital. § 87(2)(b) was cooperative and did not refuse medical attention. Sgt. Monroe denied telling the EMTs that they could not take § 87(2)(b) or that he was not permitted to receive medical attention because he had to go to Central Booking. Sgt. Monroe did not remember if an EMT asked § 87(2)(b) to sign an RMA but denied coercing § 87(2)(b) to do so. Sgt. Monroe denied threatening any officer with the termination of his employment if he allowed § 87(2)(b) to go with the EMTs. He did not remember how long § 87(2)(b) was at the stationhouse before he was removed to the hospital [see 11, 21, 31 Board Review].

PO Garcia testified that he greeted § 87(2)(b)'s mother in the stationhouse waiting area after being informed of her presence. She informed PO Garcia that she had called 911 for § 87(2)(b) but did not state why.

PO Garcia stated that he led the EMTs to § 87(2)(b) in the cell area once they arrived. PO Garcia did not remember if Sgt. Monroe was present when he introduced the EMTs to § 87(2)(b). He denied informing Sgt. Monroe of the EMTs' presence; however, he informed PO Checo of their arrival.

PO Garcia, PO Warkenthien, and Sgt. Blatt provided no testimony that confirmed or refuted the allegation that Sgt. Monroe did not obtain medical treatment for § 87(2)(b) as they had limited interactions with § 87(2)(b) at the stationhouse [see 09-10, 18 Board Review].

According to **Patrol Guide procedure 210-04**, members of the service are to request an ambulance or remove the prisoner to the hospital directly when a prisoner in custody requires medical treatment [see 26 Board Review].

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] it is recommended that **allegation K** be closed as **substantiated**.

Allegation L – Abuse of Authority: At the 40th Precinct stationhouse, PO Fabio Checo refused to provide his name and shield number to § 87(2)(b)

Allegation M – Abuse of Authority: At the 40th Precinct stationhouse, Sgt. Stephen Monroe refused to provide his name and shield number to § 87(2)(b)

Allegation N – Abuse of Authority: At the 40th Precinct stationhouse, officers refused to provide their names and shield numbers to § 87(2)(b)

§ 87(2)(b) testified that, after waiting several hours for medical attention, he asked every officer he saw, including PO Checo, for his name and shield number. § 87(2)(b) was unable to provide descriptions for any of those officers, and none of them provided the requested information. Specifically, § 87(2)(b) stated that he asked PO Checo for his name, but PO Checo told § 87(2)(b) not to worry about it. § 87(2)(b) provided PO Checo's last name during his CCRB interview. § 87(2)(b) also specified that he asked Sgt. Monroe for his name and shield number during his time in the cell area, but Sgt. Monroe refused to provide his information. § 87(2)(b) did not know Sgt. Monroe's name or shield number at the time of his CCRB interview. The investigation identified Sgt. Monroe based on § 87(2)(b)'s physical description of him.

According to § 87(2)(b) he phoned his mother after several hours had passed without the arrival of EMS, and after officers refused to provide their identifying information. As such, the EMTs would not have been present to witness § 87(2)(b)'s requests for officers' identifying information [see 06 Board Review].

PO Checo acknowledged interacting with § 87(2)(b) in the muster room and the cell area, but denied that § 87(2)(b) asked him or any other officer for his shield number. PO Checo also

Sgt. Monroe, PO Garcia, and PO Warkenthien acknowledged interacting with § 87(2)(b) while he was in the cell area. All three officers denied that § 87(2)(b) asked for their shield numbers and also denied refusing to provide their identifying information to § 87(2)(b). Sgt. Monroe, PO Garcia, and PO Warkenthien denied hearing § 87(2)(b) ask for any other officer's name or shield number [see 09-11 Board Review].

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that **allegations L and M** be closed as **unsubstantiated**.

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] As such, it is recommended that **allegation N** be closed as **officers unidentified**.

[illegible]

Squad: 1

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date